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Case Number: 22PSCV00257 Hearing Date: August 24, 2026 Dept: 6

CASE

NAME: City

of El Monte v. Lino James Ibarra, et al.

Plaintiff

City of El Monte's Motion to Tax Costs

TENTATIVE

RULING

The Court GRANTS Plaintiff City of El Monte's Motion to Tax Costs in part and TAXES \$783.39 in printing and copying fees, \$23.82 in postage fees, \$1,368.94 in messenger fees, and \$44.30 in travel costs. The Court DENIES the Motion in all other respects. Lincoln can recover \$733.06 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a nuisance action relating to illegal sales of cannabis. On March 16, 2022, plaintiff City of El Monte (Plaintiff) filed this action against defendants Lino James Ibarra (Ibarra), Michael Atencio, Manuel Aquino, Joseph Hernandez, Jung Hsiang Chen, Ya Fen Hsu, Tucker Lincoln (Lincoln), Philip Gonzales, Shane Sapp, H.C. Rue Royale Partner LLC (Rue Royale) (collectively, Defendants) and Does 1 through 100, alleging causes of action for narcotics abatement (Health and Safety Code section 11570 et seq.), public nuisance (Civil Code section

3479 et seq.), violation of El Monte Municipal Code (EMMC Chapters 5.18 and Ch. 1.19), violation of unfair competition law (Business and Professions Code section 17200 et seq.), and violation of MAUCRSA (Business and Professions Code section 26000 et seq.)

On January

18, 2024, after the Court granted Lincoln's motion for judgment on the pleadings, Plaintiff filed the operative First Amended Complaint against the same Defendants and alleging causes of action for narcotics abatement (Health and Safety Code section 11570 et seq.), public nuisance (Civil Code section 3479 et seq.), violation of El Monte Municipal Code (EMMC Chapters 5.18 and Ch. 1.19), violation of unfair competition law (Business and Professions Code section 17200 et seq.), and violation of MAUCRSA (Business and Professions Code section 26000 et seq.)

On May 13,

2024, after the Court sustained Lincoln's demurrer to the First Amended Complaint, Plaintiff filed the operative Second Amended Complaint (SAC) against the same Defendants, plus defendant Joseph Flores (Flores) who was also added via doe amendment on May 14, 2024, alleging causes of action for narcotics abatement (Health and Safety Code section 11570 et seq.), public nuisance (Civil Code section 3479 et seq.), violation of El Monte Municipal Code (EMMC Chapters 5.18 and Ch. 1.19).

On August

12, 2024, the Court sustained Lincoln's demurrer to the SAC without leave to amend. On August 19, 2024, the Court entered a judgment of dismissal in favor of Lincoln. On September 4, 2024, Lincoln filed a memorandum of costs.

On December 17, 2024, the Court

granted Lincoln's motion for attorney's fees. On January 23, 2025, Plaintiff appealed the Court's order. On May 6, 2026, the Court of Appeal issued a remittitur affirming this Court's December 17, 2024 ruling on Lincoln's motion for attorney fees. On June 12, 2026, Plaintiff filed a memorandum of costs.

On July 6, 2026, Plaintiff moved to tax costs. On August 11, 2026, Lincoln opposed the Motion. On July 17, 2026, Plaintiff replied to Lincoln's Opposition.

LEGAL

STANDARD

(c)

Procedure for claiming or opposing costs

(1) Within

40 days after issuance of the remittitur, a party claiming costs awarded by a reviewing court must serve and file in the superior court a verified memorandum of costs under rule 3.1700.

(2) A party

may serve and file a motion in the superior court to strike or tax costs claimed under (1) in the manner required by rule 3.1700.

(3) An

award of costs is enforceable as a money judgment.

(d)

Recoverable costs

(1) A party

may recover only the following costs, if reasonable:

(A) Filing

fees;

(B) The

amount the party paid for any portion of the record, whether an original or a copy or both. The cost to copy parts of a prior record under rule 8.147(b)(2) is not recoverable unless the Court of Appeal ordered the copying;

(C) The

cost to produce additional evidence on appeal;

(D) The

costs to notarize, serve, mail, and file the record, briefs, and other papers;

(E) The

cost to print and reproduce any brief, including any petition for rehearing or review, answer, or reply;

(F) The

cost to procure a surety bond, including the premium, the cost to obtain a letter of credit as collateral, and the fees and net interest expenses incurred to borrow funds to provide security for the bond or to obtain a letter of credit, unless the trial court determines the bond was unnecessary; and

(G) The

fees and net interest expenses incurred to borrow funds to deposit with the superior court in lieu of a bond or undertaking, unless the trial court determines the deposit was unnecessary.

(2) Unless

the court orders otherwise, an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702.

(Cal. Rules of Court, rule 8.278;
emphasis added.)

DISCUSSION

Summary of Arguments

Plaintiff moves to tax the entire \$2,853.51 claimed in Defendant Lincoln's Memorandum of Costs, contending that the entries comprise trial-court fee-motion costs, postjudgment enforcement costs, and appellate costs, none properly recoverable through this memorandum. Plaintiff argues that the expenses of Lincoln's attorney-fee motions were recoverable, if at all, only as part of those motions themselves and not through a memorandum of costs. Plaintiff contends the printing, photocopying, exhibit-supply, and postage charges are expressly non-allowable under Code of Civil Procedure section 1033.5, subdivision (b)(3), and that the messenger charges were merely convenient rather than reasonably necessary because electronic filing and service were mandatory. Plaintiff asserts the sixteen 2024 entries (\$990.16) are untimely, having been claimed roughly eighteen months after the December 20, 2024 notice of entry of judgment and outside the 15-day period of California Rules of Court, rule 3.1700, subdivision (a)(1). Finally, Plaintiff argues the appellate entries (\$767.14) were never claimed on the mandatory Form APP-013 within the 40-day period of rule 8.278, subdivision (c)(1), which

expired June 15, 2026, and that several entries are unintelligible or duplicative.

In

opposition, Lincoln contends that his June 12, 2026 Memorandum of Costs was timely, verified, and sufficiently itemized, and that presenting the appellate costs on Form MC-010 rather than Form APP-013 was a curable administrative error that did not forfeit those costs, having been filed thirty-seven days after the remittitur and within rule 8.278, subdivision (c)(1)'s 40-day period. Lincoln argues that Estate of Trynin confirms the compensability of fee-motion work but does not require every related filing, service, printing, or messenger expense to be claimed within the fee motion or be forfeited. Lincoln contends the filing, electronic-filing, service, printing, messenger, and postage charges were tied to identified filings and deliveries and are recoverable under section 1033.5 and, independently, under the broad cost authorization of Civil Code section 3496, which supplies the "expressly authorized by law" exception to subdivision (b)(3). Lincoln asserts the 2024 charges were timely postjudgment enforcement costs under the Enforcement of Judgments Law, claimable within two years and before satisfaction of the judgment, and that any lateness should be excused absent prejudice. Lincoln maintains that the messenger charges were reasonably necessary to preserve the June 17 hearing and to effect required service, and that the mileage and parking entries reflect two attorneys who traveled separately to oral argument rather than duplicate billing.

In reply, Plaintiff contends that

the appellate entries were never claimed as costs on appeal because the memorandum invokes only Code of Civil Procedure sections 1032 and 1033.5, never references rule 8.278, and never identifies any entry as appellate. Plaintiff also distinguishes *Faton* as addressing only fundamental jurisdiction and as involving a statutory scheme with an express saving clause and no strict deadline, unlike rule 8.278, subdivision (c)(1)'s 40-day period that expired June 15, 2026. Plaintiff argues that even if the memorandum were treated as an acceptable vehicle, several entries fall outside rule 8.278, subdivision (d)(1), the trial-court entries independently fail under section 1033.5, and that Lincoln's entry-by-entry corrections, offered only by a declaration served two months later, leave no reliable basis to allow any part of the claim. As to the 2024 charges, Plaintiff contends they were never properly claimed as postjudgment costs because Lincoln used Form MC-010 rather than the mandatory Form MC-012, the printing, supply, messenger, and postage items appear nowhere

among the enumerated categories of section 685.070, subdivision (a), and could be claimed only by a noticed motion under section 685.080 that was never filed. Plaintiff also argues that the judgment-debtor-discovery costs lack the judge's approval that section 685.070, subdivision (a)(5), requires. It maintains that only the October 30, 2024 entries (\$178.40) concern enforcement, that the remainder are trial-court costs claimed roughly eighteen months late, and that the reply-timing point excuses at most two entries. Finally, Plaintiff argues the printing, supply, messenger, and postage charges merely duplicate the mandatory electronic filing and service and are therefore neither reasonably necessary nor, as to photocopying and postage, allowable, and that Civil Code section 3496 is not the express authorization subdivision (b) requires because *City of Oakland v. McCullough* concerned only government salaries and overhead.

Analysis

The Court finds Lincoln is entitled to recover costs, albeit not all of the costs claimed. First, Lincoln timely filed and served the Memorandum of Costs on June 12, 2026, i.e., less than 40 days from the date the remittitur issued on May 6, 2026. (Memorandum of Costs (6/12/26); Cal. Rules of Court, rule 8.278, subd. (c)(1).)

Second, Lincoln's use of the wrong form does not invalidate Lincoln's claimed costs. While Form APP-013 is mandatory for costs on appeal, that does not deprive the Court of jurisdiction to consider Lincoln's Memorandum of Costs. (See Cal. Rules of Court, rule 1.31, subd. (b); *Miller v. Cortese* 1955) 136 Cal.App.2d 47, 50 [affirming order regarding verification of a memorandum of costs on appeal that omitted necessary statutory language on the grounds that it substantially complied with the statute]; see also *Russell v. Trans Pac. Grp.* (1993) 19 Cal.App.4th 1717, 1720, fn. 5 [noting that defendants' cost memorandum had interlineated the word "contract" in place of "statute" on 1987 Judicial Council form].)

Third, the Court finds Lincoln's Memorandum of Costs sufficiently detailed such that the Court can reasonably determine whether the costs claimed are recoverable. (See Memorandum of Costs (6/12/26).)

Fourth, although Lincoln's Memorandum of Costs includes costs from 2024, those costs were incurred following entry of judgment. (See Judgment (8/19/24); Memorandum of Costs (6/12/26); Code Civ. Proc., § 708.010 et seq.) Also, cost memorandum time limits are not jurisdictional and Plaintiff has not

demonstrated prejudice to Lincoln seeking these costs. (*Haley v. Casa Del Rey Homeowners Assn.* (2007) 153 Cal.App.4th 863, 880.)

Fifth, *Estate of Trynin* does not mandate that costs be included with a fee motion; it was merely noting a prior court's comment about including reasonable expenses of preparing an application for fees in the award. (See *Estate of Trynin* (1989) 49 Cal.3d 868, 875.) Thus, Lincoln's omission of the claimed costs in the prior fee motion does not deprive Lincoln of the costs claimed.

Nevertheless, the Court finds various categories of Lincoln's claimed costs improper, namely postage, printing/photocopying, travel costs, and messenger fees. First, all of Lincoln's claimed postage costs were incurred before the appeal and are therefore not recoverable. (Memorandum of Costs (6/12/26).) Second, printing/photocopying costs are not recoverable for non-appellate matters and the majority of Lincoln's claimed printing/photocopying costs are for non-appellate matters and the appellate matters do not include copying parts of the record or any briefs. (See Memorandum of Costs (6/12/26); Code Civ. Proc., § 1033.5, subd. (b)(3) [expressly excluding postage and photocopying charges]; compare Cal. Rules of Court, rule 8.278, subd. (d)(1)(D) [mailing costs permitted for appellate briefs and other papers].) Also, the only printing/photocopying costs incurred in connection with the appeal was \$0.40 for "ORAL ARGUMENT REQUEST FORM[S]", not for any appellate briefs. (Memorandum of Costs (6/12/26); Cal. Rules of Court, rule 8.278, subd. (d)(1)(E) [printing costs for briefs permitted].) Third, this Court requests only electronic courtesy copies in limited circumstances, so Lincoln's courtesy copy messenger service related fees were not reasonably incurred. (Dept. 6 Courtroom Information ["For any papers filed within 5 calendar days of a hearing, please send a courtesy conformed copy directly to the courtroom, via email..."].) Finally, travel expenses are not listed as recoverable costs. (Memorandum of Costs (6/12/26); see generally, Code Civ. Proc., § 1033.5; Cal. Rules of Court, rule 8.278, subd. (d)(1).) The Court therefore TAXES \$783.39 in printing and copying fees, \$23.82 in postage fees, \$1,268.94 in messenger fees, and \$44.30 in travel costs.

To the extent Lincoln contends Civil Code section 3496 broadens the scope of recoverable costs, the Court finds Lincoln's arguments unpersuasive. Civil Code section 3496's costs language merely broadens the categories of recoverable litigation expenses, namely the government's investigation and prosecution expenses as the abating party, without displacing the specific

prohibitions under subdivision (b)(3) of Code of Civil Procedure section 1033.5. It does not expand to include routine litigation costs. (See Civ. Code, § 3496; City of Oakland v. McCullough (1996) 46 Cal.App.4th 1, 7 ["We conclude, therefore, that because the Legislature intended section 3496 to offset the expenses of investigating and prosecuting a drug house abatement action..."].

Based on the foregoing, the Court GRANTS Plaintiff's Motion to Tax Costs in part and TAXES \$783.39 in printing and copying fees, \$23.82 in postage fees, \$1,268.94 in messenger fees, and \$44.30 in travel costs. The Court DENIES the Motion in all other respects. Lincoln can recover \$733.06 in costs.

CONCLUSION

The Court GRANTS Plaintiff City of El Monte's Motion to Tax Costs in part and TAXES \$783.39 in printing and copying fees, \$23.82 in postage fees, \$1,368.94 in messenger fees, and \$44.30 in travel costs. The Court DENIES the Motion in all other respects. Lincoln can recover \$733.06 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.